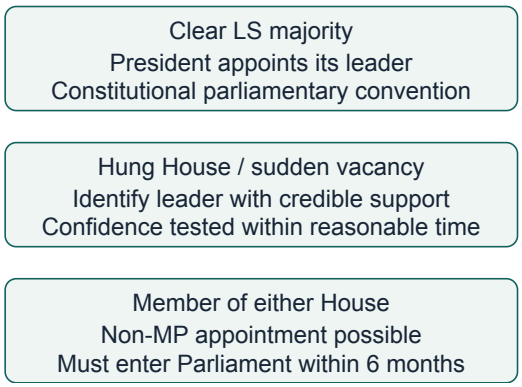
Prime Minister

1. Appointment and parliamentary confidence

- **President = Head of State/formal executive; PM = Head of Government/real executive leader**, operating through the Council of Ministers.
- **75:** President appoints PM; Constitution prescribes no popular/direct PM election or detailed party-selection procedure. With clear LS majority, appoint its leader; with hung House, select person **likely to command confidence**, coalition/support evidence matters.
- Largest party alone has no absolute constitutional entitlement. Floor test within **reasonable time**, not an invariable constitutional “one-month” limit. Appointment need not await a prior confidence vote; majority must subsequently be established when required.
- **1979:** N. Sanjeeva Reddy appointed Charan Singh after Morarji Desai government's fall. Examples of appointment before proving confidence: Charan Singh 1979; V.P. Singh 1989; Chandra Shekhar 1990; P.V. Narasimha Rao 1991; Vajpayee 1996/1998; Deve Gowda 1996; Gujral 1997.
- Sudden death/no clear successor requires situational presidential judgment: **1964/1966 Gulzarilal Nanda interim PM** after Nehru/Shastri; **1984 Rajiv Gandhi** appointed after Indira's assassination, then confirmed as party leader.
- **75(5):** non-MP may be appointed but must enter **either House within six consecutive months**, otherwise ceases to be Minister/PM; no recurring appointments to evade rule. SC upheld non-MP PM appointment in **1996**.
- PM may belong to **LS or RS**: Indira Gandhi at initial 1966 appointment, Deve Gowda after 1996 parliamentary entry, Manmohan Singh 2004 were RS-associated examples. **Deve Gowda initially not an MP**, so do not imply he was already RS member at appointment.



Appointment depends on parliamentary confidence.

2. Oath, tenure and emoluments

- President administers **office and secrecy oaths** under **75(4)/Third Schedule**: constitutional allegiance; sovereignty/integrity; faithful conscientious duty; justice without fear/favour, affection/ill-will; confidentiality except due official discharge.
- **No fixed PM term**; presidential pleasure operates through **LS confidence**, not arbitrary dismissal of a majority-backed government. Loss of confidence → resignation or constitutional replacement after majority determination.

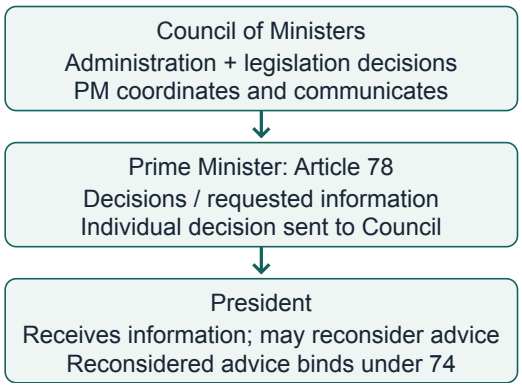
- Pay/allowances governed by Parliament, including Ministers' Salaries/Allowances Act, 1952: MP-linked remuneration plus prescribed sumptuary/residence/travel/medical facilities. Chapter records PM sumptuary allowance rise **₹1,500 → ₹3,000/month in 2001**; not total salary.

3. PM and Council of Ministers

- Recommends persons for presidential ministerial appointment; allocates/reshuffles portfolios; asks Minister to resign or recommends removal; chairs Cabinet/Council discussions and coordinates policy.
- Guides, directs and coordinates Ministers; government's cohesion and collective responsibility centre on PM leadership.
- PM resignation/death ends existing ministry's political basis, requiring successor/reconstituted arrangements; **does not imply that public administration stops or no caretaker continuity is possible**. Other Minister's departure usually creates only individual vacancy.
- **Laski's recall:** PM central to ministry's **formation, life and end**.

4. PM and President: 74, 75, 78

- **74:** Council aids/advises President; President may ask reconsideration once, must act on reconsidered advice. **75:** PM appointed by President, other Ministers on PM advice; ministry collectively responsible to **LS**.
- **78's three duties:** communicate Council's administration/legislation decisions; supply information President requests; submit individual Minister's decision to Council when President requires.
- PM principal channel of President-ministry communication; advice on appointments operates through **office-specific constitutional/statutory selection processes**, not unilateral selection of every constitutional officer.



PM connects responsible ministry and President.

5. Parliament and broader leadership

- Advises parliamentary summoning/prorogation; may recommend **LS dissolution**, subject to constitutional consideration where majority lost/alternative exists; announces government policy and manages legislative programme.
- **PM may be RS member**, so textbook “always leader of Lower House” is too broad; government's LS Leader can be another Minister. **88:** Minister can speak/take part in either House and specified committees, but votes only in House of membership.

- Chairs **NITI Aayog**, Inter-State Council, National Integration Council and specified national coordination bodies; chapter also lists National Water Resources Council. These roles arise under respective arrangements, not one omnibus constitutional Article.
- Shapes foreign policy, spokesperson of Union government, political crisis coordination, party/coalition leadership; receives State/public representations; political head of administrative machinery while constitutional/statutory safeguards remain.

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6. Role descriptions: match person to phrase

- **Lord Morley:** first among equals (**primus inter pares**), keystone of Cabinet arch. **Herbert Morrison:** “first among equals” understates modern authority.
- **William Vernon Harcourt:** moon among lesser stars. **Ivor Jennings:** sun around which planets revolve; all constitutional roads lead to PM.
- **H.J. Laski:** pivot; central to ministry's formation/life/death. **H.R.G. Greaves:** leader masters governmental machinery.
- **W.B. Munro:** captain of State's ship. **Ramsay Muir:** steersman. **R.H. Crossman:** shift from Cabinet to Prime-Ministerial government. **Humphry Berkeley:** criticism of excessive PM power weakening effective parliamentary sovereignty.
- Treat metaphors as commentary: strength varies with majority, party organisation, coalition, Cabinet colleagues, institutions and political circumstances. **Ambedkar:** Indian executive leadership comparable to US President lies chiefly with PM rather than ceremonial President; systems remain different.

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7. Former Chief Ministers who became PMs

- **Morarji Desai:** Bombay CM **1952-56**, PM **1977**, first non-Congress PM. **Charan Singh:** UP CM **1967-68/1970**, PM **1979**.
- **V.P. Singh:** UP CM, PM **December 1989-November 1990**. **P.V. Narasimha Rao:** AP CM **1971-73**, PM **1991-96**, first PM from South India.
- **H.D. Deve Gowda:** Karnataka CM before PM **June 1996**. **Narendra Modi:** Gujarat CM **2001-14**, PM first took office **May 2014**. Six people in chapter's list; these are historical office transitions.

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8. Caretaker government: convention and continuity

- Constitution has **no separate caretaker-government category**; responsible ministry continues as necessary after resignation/LS dissolution until new arrangements. Free/fair elections conducted by **ECI**, with administration required to support lawful, neutral process.
- Routine administration and urgent national/security-interest decisions continue; convention discourages **major new policy, avoidable spending, appointments or electoral advantage** without proper justification. Caretaker does not mean all legal executive powers vanish.
- **Tarkunde/JP Committee:** unofficial electoral-reform committee **1974**, report **1975**, chair Justice V.M. Tarkunde; proposed no new policies/projects, allowances/loans/pay rises or partisan minister-attended official functions.
- **August 1979 presidential communique:** government promised neutral elections, no major new policy/spending; urgent national-interest work not held up. Historical proposed Nov-Dec timetable must not be confused with actual later election dates.

- **Calcutta HC, December 1979:** extraordinary continuity arrangement for necessary day-to-day administration until alternative ministry. Restraint rationale: dissolved LS weakens normal parliamentary accountability; outgoing government must not exploit office in elections.
- Distinguish **caretaker convention**, EC's **Model Code of Conduct**, and binding constitutional/statutory duties; they overlap but are not identical.

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9. One-minute recall / Mains

- **74 advice; 75 appointment/LS responsibility/6 months; 77 government business; 78 communication; 88 participation.**
- **Either House eligible; no fixed term; majority support central; President appoints but does not have unrestricted policy choice.**
- Mains: PM links President-Cabinet-Parliament; leadership enables coordination, while collective responsibility, opposition, courts, federal institutions and internal Cabinet/coalition consultation curb concentration.

Reference

- Official Constitution: Articles 74-78 and 88.